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The Gazette of the Democratic Socialist Republic of Sri Lanka
EXTRAORDINARY

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2215/41 – THURSDAY, FEBRUARY 18, 2021

(Published by Authority)

PART I: SECTION (I) – GENERAL

Government Notifications

My No.: IR/COM/02/2017/107.

**THE INDUSTRIAL DISPUTES ACT, CHAPTER 131 OF THE LEGISLATIVE ENACTMENTS OF CEYLON
(1956 REVISED EDITION)**

Revocation of Order under Section 4(1)

WHEREAS by Order made under Section 4(1) of the Industrial Disputes Act, Chapter 131 of the Legislative Enactments of Ceylon (Revised Edition 1956), as amended by Act, Nos. 14 and 62 of 1957, 14 of 1962 and 39 of 1968 read with Industrial Disputes (Special Provisions) Act, No. 37 of 1968 dated 21.09.2020 and published in the *Gazette of the Democratic Socialist Republic of Sri Lanka Extraordinary* No. 2194/51 dated 23.09.2020 of the Industrial Dispute in respect of the matter specified in the statement of the Commissioner General of Labour dated 20.07.2020.

1. Mr. N. G. Wilson, No. 166, Korala Limit Road, Kalatuwawa - West, Thummodara.

2. Mr. H. P. S. Hewawasam (Presently, Kaluaggala Siriwimalasara Thero), No. 47, Ratnapura Road, Kaluaggala, Hanwella. *of the one part*

and

Sri Lanka Transport Board, No. 200, Kirula Road, Colombo 05. *of the other part*

was referred to Mr. L. R. Sumathipala for settlement by arbitration.



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I කොටස: (I) ඡේදය - ශ්‍රී ලංකා ප්‍රජාතාන්ත්‍රික සමාජවාදී ජනරජයේ අති විශේෂ ගැසට් පත්‍රය - 2021.02.18
PART I: SEC. (I) - GAZETTE EXTRAORDINARY OF THE DEMOCRATIC SOCIALIST REPUBLIC OF SRI LANKA - 18.02.2021

AND whereas it is now deemed expedient that the said Order be revoked, I, Nimal Siripala De Silva, Minister of Labour do hereby revoke the said Order and further make Order that no proceedings be taken upon the said Order dated 21.09.2020.

NIMAL SIRIPALA DE SILVA,
Minister of Labour.

15th February, 2021.
Colombo.

03 - 133/1

My No.: IR/COM/02/2017/107.

**THE INDUSTRIAL DISPUTES ACT, CHAPTER 131 OF THE LEGISLATIVE ENACTMENTS OF CEYLON
(1956 REVISED EDITION)**

Order under Section 4(1)

WHEREAS AN industrial dispute in respect of the matter specified in the statement of the Commissioner General of Labour which accompanies this order exists between,

1. Mr. N. G. Wilson, No. 166, Korala Limit Road, Kalatuwawa - West, Thummodara.

2. Mr. H. P. S. Hewawasam (Presently, Kaluaggala Siriwimalasara Thero), No. 47, Ratnapura Road, Kaluaggala, Hanwella. *of the one part*

and

Sri Lanka Transport Board, No. 200, Kirula Road, Colombo 05. *of the other part*

NOW THEREFORE I, Nimal Siripala De Silva, Minister of Labour do by virtue of the powers vested in me by Section 4(1) of the Industrial Disputes Act, Chapter 131 of the Legislative Enactments of Ceylon (1956 Revised Edition), as amended by Act, Nos. 14 of 1957, 4 of 1962 and 39 of 1968 (read with Industrial Disputes-Special Provisions) Act, No. 37 of 1968 hereby appoint Mr. Vijithananda Madawalagama, Attorney-at-law, No. 16, Opposite Road of Petrol Shed, Kajugahawatta, Gothatuwa, Nawa Nagaraya to be the arbitrator and refer the aforesaid dispute to him for settlement by arbitration.

NIMAL SIRIPALA DE SILVA,
Minister of Labour.

15th February, 2021.
Colombo.

My No.: IR/COM/02/2017/107.

**THE INDUSTRIAL DISPUTES ACT, CHAPTER 131 OF THE LEGISLATIVE ENACTMENTS OF CEYLON
(1956 REVISED EDITION)**

1. Mr. N. G. Wilson, No. 166, Korala Limit Road, Kalatuwawa - West, Thummodara.

2. Mr. H. P. S. Hewawasam (Presently, Kaluaggala Siriwimalasara Thero), No. 47, Ratnapura Road, Kaluaggala,
Hanwella. *of the one part*

and

Sri Lanka Transport Board, No. 200, Kirula Road, Colombo 05. *of the other part*

STATEMENT OF MATTER IN DISPUTE

The matter in dispute between the aforesaid parties is

Mr. N. G. Wilson and Mr. H. P. S. Hewawasam (Presently, Kaluaggala Siriwimalasara Thero) had joined the Sri Lanka Transport Board first of all. At that time they had been given membership in the Sri Lanka Transport Board approved Employees Provident Fund and in 1991 when the Board had been peoplized they had become employees of peoplized bus companies in which event they had been removed from approved Employees Provident Fund and given membership in the Employees Provident Fund. Once again they had become employees of the Sri Lanka Transport Board in terms of Sri Lanka Transport Board Act No. 27 of 2005 and Sri Lanka Transport Board Circular No. 11 of 2011. Whether they had been caused injustice by not being given approved Employees Provident Fund membership after becoming employees of the SLTB and if so, to what reliefs they are entitled.

B. K. PRABATH CHANDRAKEERTHI,
Commissioner General of Labour.

Dated at the office of the Commissioner General of Labour,
Colombo, on this 12th day of February 2021.

03 - 133/2

My No.: IR/COM/04/2017/54-i.
IR/COM/04/2017/219.

**THE INDUSTRIAL DISPUTES ACT, CHAPTER 131 OF THE LEGISLATIVE ENACTMENTS OF CEYLON
(1956 REVISED EDITION)**

Revocation of Order under Section 4(1)

WHEREAS by Order made under Section 4(1) of the Industrial Disputes Act, Chapter 131 of the Legislative Enactments of Ceylon (Revised Edition 1956), as amended by Act, Nos. 14 and 62 of 1957, 14 of 1962 and 39 of 1968 read with Industrial

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I කොටස: (I) ඡේදය – ශ්‍රී ලංකා ප්‍රජාතාන්ත්‍රික සමාජවාදී ජනරජයේ අති විශේෂ ගැසට් පත්‍රය – 2021.02.18
PART I: SEC. (I) – GAZETTE EXTRAORDINARY OF THE DEMOCRATIC SOCIALIST REPUBLIC OF SRI LANKA – 18.02.2021

Disputes (Special Provisions) Act, No. 37 of 1968 dated 24.11.2020 and published in the *Gazette of the Democratic Socialist Republic of Sri Lanka Extraordinary* No. 2208/7 dated 28.12.2020 of the Industrial Dispute in respect of the matter specified in the statement of the Commissioner General of Labour dated 20.11.2020.

Group of Employees Inclusive of Mr. Jayantha Thiranagama, Danawala, Neluwa. *of the one part*

and

Tea Shakthi Fund, 8th Floor, Sethsiripaya, 2nd Stage, Battaramulla. *of the other part*

was referred to Mr. K. A. Piyarathna for settlement by arbitration.

AND whereas it is now deemed expedient that the said Order be revoked, I, Nimal Siripala De Silva, Minister of Labour do hereby revoke the said Order and further make Order that no proceedings be taken upon the said Order dated 24.11.2020.

NIMAL SIRIPALA DE SILVA,
Minister of Labour.

15th February, 2021.
Colombo.

03 - 134/1

My No.: IR/COM/04/2017/54-i.
IR/COM/04/2017/219.

**THE INDUSTRIAL DISPUTES ACT, CHAPTER 131 OF THE LEGISLATIVE ENACTMENTS OF CEYLON
(1956 REVISED EDITION)**

Order under Section 4(1)

WHEREAS AN industrial dispute in respect of the matter specified in the statement of the Commissioner General of Labour which accompanies this order exists between,

Group of Employees Inclusive of Mr. Jayantha Thiranagama, Danawala, Neluwa. *of the one part*

and

Tea Shakthi Fund, 8th Floor, Sethsiripaya, 2nd Stage, Battaramulla. *of the other part*

NOW THEREFORE I, Nimal Siripala De Silva, Minister of Labour do by virtue of the powers vested in me by Section 4(1) of the Industrial Disputes Act, Chapter 131 of the Legislative Enactments of Ceylon (1956 Revised Edition), as amended by Act, Nos. 14 of 1957, 4 of 1962 and 39 of 1968 (read with Industrial Disputes-Special Provisions) Act, No. 37 of 1968

hereby appoint Mr. S. C. R. A. Upali Nishshanka Gunasekara, No. 60, Bandaranaike Mawatha, Badulla to be the arbitrator and refer the aforesaid dispute to him for settlement by arbitration.

NIMAL SIRIPALA DE SILVA,
Minister of Labour.

15th February, 2021.
Colombo.

My No.: IR/COM/04/2017/54-i.
IR/COM/04/2017/219.

**THE INDUSTRIAL DISPUTES ACT, CHAPTER 131 OF THE LEGISLATIVE ENACTMENTS OF CEYLON
(1956 REVISED EDITION)**

Group of Employees Inclusive of Mr. Jayantha Thiranagama, Danawala, Neluwa. *of the one part*

and

Tea Shakthi Fund, 8th Floor, Sethsiripaya, 2nd Stage, Battaramulla. *of the other part*

STATEMENT OF MATTER IN DISPUTE

The matter in dispute between the aforesaid parties is

Whether the below-mentioned 08 employees inclusive of Mr. Jayantha Thiranagama who served the Tea Shakthi Fund and terminated on 31.12.2016 have been caused injustice by the retirement age been considered as 55 years in the calculation of compensation due to the closure of the factories under the Tea Shakthi Fund even though they had the opportunity to work up to the age of 60 and if so, to what reliefs they are entitled.

- | | |
|------------------------------|----------------------------|
| 1. Jayantha Thiranagama | 5. Pasan Watawala |
| 2. A. W. Kumarasiri | 6. Priyantha Balapatabendi |
| 3. M. P. Neetha Rathnakumari | 7. W. M. Dharmasiri |
| 4. M. K. Anura Sarath Kumara | 8. W. W. C. C. Kumara |

B. K. PRABATH CHANDRAKEERTHI,
Commissioner General of Labour.

Dated at the office of the Commissioner General of Labour,
Colombo, on this 10th day of February, 2021.

My No.: IR/COM/02/K/2015/12.

**THE INDUSTRIAL DISPUTES ACT, CHAPTER 131 OF THE LEGISLATIVE ENACTMENTS OF CEYLON
 (1956 REVISED EDITION)**

Revocation of Order under Section 4(1)

WHEREAS by Order made under Section 4(1) of the Industrial Disputes Act, Chapter 131 of the Legislative Enactments of Ceylon (Revised Edition 1956), as amended by Acts, Nos. 14 and 62 of 1957, 14 of 1962 and 39 of 1968 read with Industrial Disputes (Special Provisions) Act, No. 37 of 1968 dated 24.11.2021 and published in the *Gazette of the Democratic Socialist Republic of Sri Lanka Extraordinary* No. 2208/15 dated 30.12.2020 of the Industrial Dispute in respect of the matter specified in the statement of the Commissioner General of Labour dated 20.11.2020.

Mr. H. W. Padmakumara, No. 570/1 A, Elwitigala Mawatha, Narahenpita.

and

Lanka Salt Limited, Mahalewaya, Hambantota.

was referred to Mr. D. G. K. Karunaratne for settlement by arbitration.

AND whereas it is now deemed expedient that the said Order be revoked, I, Nimal Siripala De Silva, Minister of Labour do hereby revoke the said Order and further make Order that no proceedings be taken upon the said Order dated 24.11.2020.

NIMAL SIRIPALA DE SILVA,
 Minister of Labour.

16th February, 2021.
 Colombo.

03 - 135/1

My No.: IR/COM/02/K/2015/12.

**THE INDUSTRIAL DISPUTES ACT, CHAPTER 131 OF THE LEGISLATIVE ENACTMENTS OF CEYLON
 (1956 REVISED EDITION)**

Order under Section 4(1)

WHEREAS AN industrial dispute in respect of the matter specified in the statement of the Commissioner General of Labour which accompanies this order exists between,

Mr. H. W. Padmakumara, No. 570/1A, Elwitigala Mawatha, Narahenpita.

and

Lanka Salt Limited, Mahalewaya, Hambantota.

NOW THEREFORE I, Nimal Siripala De Silva, Minister of Labour do by virtue of the powers vested in me by Section 4(1) of the Industrial Disputes Act, Chapter 131 of the Legislative Enactments of Ceylon (1956 Revised Edition), as amended by Acts, Nos. 14 of 1957, 4 of 1962 and 39 of 1968 (read with Industrial Disputes-Special Provisions) Act, No. 37 of 1968 hereby appoint Mr. R. M. J. C. Rathnayake, No. 100 A/A , Railway Avenue, Diyathalawa to be the arbitrator and refer the aforesaid dispute to him for settlement by arbitration.

NIMAL SIRIPALA DE SILVA,
Minister of Labour.

16th February, 2021.
Colombo.

My No.: IR/COM/02/K/2015/12.

**THE INDUSTRIAL DISPUTES ACT, CHAPTER 131 OF THE LEGISLATIVE ENACTMENTS OF CEYLON
(1956 REVISED EDITION)**

Mr. H. W. Padmakumara, No. 570/1A, Elwitigala Mawatha, Narahenpita.

and

Lanka Salt Limited, Mahalewaya, Hambantota.

STATEMENT OF MATTER IN DISPUTE

The matter in dispute between the aforesaid parties is

Whether Mr. H. W. Padmakumara who had worked as a Special Grade Cashier of Lanka Salt Limited, No. 227/4 A, Nirmana Mawatha, Nawala Road, Nugegoda, interdicted without pay on 28.12.2007 and re-instated in employment on 02.02.2009 following a disciplinary inquiry had been caused injustice by the non-payment of the arrears of salary, salary increments and other allowances for the period of interdiction and if so, to what relief he is entitled.

B. K. PRABATH CHANDRAKEERTHI,
Commissioner General of Labour.

Dated at the office of the Commissioner General of Labour,
Colombo, on this 15th day of February, 2021.

My No.: IR/COM/04/W/2015/144.

**THE INDUSTRIAL DISPUTES ACT, CHAPTER 131 OF THE LEGISLATIVE ENACTMENTS OF CEYLON
 (1956 REVISED EDITION)**

Revocation of Order under Section 4(1)

WHEREAS by Order made under Section 4(1) of the Industrial Disputes Act, Chapter 131 of the Legislative Enactments of Ceylon (Revised Edition 1956), as amended by Acts, Nos. 14 and 62 of 1957, 14 of 1962 and 39 of 1968 read with Industrial Disputes (Special Provisions) Act, No. 37 of 1968 dated 18.11.2020 and published in the *Gazette of the Democratic Socialist Republic of Sri Lanka Extraordinary* No. 2203/21 dated 25.11.2020 of the Industrial Dispute in respect of the matter specified in the statement of the Commissioner General of Labour dated 26.10.2020.

Mr. K. P. Premasiri, No. 279, Dewram Vehera, Thanamalwila.

and

Sri Lanka Transport Board, No. 200, Kirula Road, Colombo 05.

was referred to Mrs. K. K. Kumari Dhanapala for settlement by arbitration.

AND whereas it is now deemed expedient that the said Order be revoked, I, Nimal Siripala De Silva, Minister of Labour do hereby revoke the said Order and further make Order that no proceedings be taken upon the said Order dated 18.11.2020.

NIMAL SIRIPALA DE SILVA,
 Minister of Labour.

15th February, 2021.
 Colombo.

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My No.: IR/COM/04/W/2015/144.

**THE INDUSTRIAL DISPUTES ACT, CHAPTER 131 OF THE LEGISLATIVE ENACTMENTS OF CEYLON
 (1956 REVISED EDITION)**

Order under Section 4(1)

WHEREAS AN industrial dispute in respect of the matter specified in the statement of the Commissioner General of Labour which accompanies this order exists between,

Mr. K. P. Premasiri, No. 279, Dewram Vehera, Thanamalwila.

and

Sri Lanka Transport Board, No. 200, Kirula Road, Colombo 05.

NOW THEREFORE I, Nimal Siripala De Silva, Minister of Labour do by virtue of the powers vested in me by Section 4(1) of the Industrial Disputes Act, Chapter 131 of the Legislative Enactments of Ceylon (1956 Revised Edition), as amended by Acts, Nos. 14 of 1957, 4 of 1962 and 39 of 1968 (read with Industrial Disputes-Special Provisions) Act, No. 37 of 1968 hereby appoint Mr. Malintha Jayasingha, Attorney-at-Law, No. 66, Bandaranaike Mawatha, Badulla to be the arbitrator and refer the aforesaid dispute to him for settlement by arbitration.

NIMAL SIRIPALA DE SILVA,
Minister of Labour.

15th February, 2021.
Colombo.

My No.: IR/COM/04/W/2015/144.

**THE INDUSTRIAL DISPUTES ACT, CHAPTER 131 OF THE LEGISLATIVE ENACTMENTS OF CEYLON
(1956 REVISED EDITION)**

Mr. K. P. Premasiri, No. 279, Dewram Vehera, Thanamalwila.

and

Sri Lanka Transport Board, No. 200, Kirula Road, Colombo 05.

STATEMENT OF MATTER IN DISPUTE

The matter in dispute between the aforesaid parties is

Whether Mr. K. P. Premasiri who had been employed as a Driver of the Kataragama Depot of the Sri Lanka Transport Board had been caused injustice by,

1. Suspension of employment from 12.02.2011 without a disciplinary inquiry, and
2. Not providing any relief for the period from 12.02.2011, the date of suspension to 25.08.2016, the date of reinstatement,

and if so, to what relief Mr. K. P. Premasiri is entitled.

B. K. PRABATH CHANDRAKEERTHI,
Commissioner General of Labour.

Dated at the office of the Commissioner General of Labour,
Colombo, on this 10th day of February, 2021.

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